

TENTATIVE RULING

Case: **Zhou v. Hotel Winters, LLC**
 Case No. CV2023-0312

Hearing Date: **July 24, 2026** **Department Eight** **1:30 p.m.**

Plaintiff Xinyao Zhou’s motion for leave to file third amended complaint is **GRANTED**. (Code Civ. Proc., §§ 473, 576; Cal. Rules of Court, rule 3.1324.) “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530.) First, plaintiff has satisfied the applicable procedural requirements. (Cal. Rules of Court, rule 3.1324; Zhou dec., ¶¶ 3-19, Exhibits A & B.) Second, defendant Hotel Winters, LLC has not established that it will be prejudiced by the proposed amendment, or the requested amendment is not warranted under Code of Civil Procedure sections 473(a)(1) and/or 576. (See *Leader v. Health Industries of America, Inc.* (2001) 89 Cal.App.4th 603, 613; see also *Magpali v. Farmers Group* (1996) 48 Cal.App.4th 471, 486.) Finally, if defendant believes that plaintiff’s causes of action are not meritorious, then it may test the amended complaint’s “legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings.” (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.)

Plaintiff is directed to file the proposed third amended complaint, attached to her declaration, by **July 31, 2026**. (Zhou decl., ¶ 4, Exhibit B.)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.